

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

- against -

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants.
-----X

**VERIFIED BILL OF
PARTICULARS**

Index No.: 160000/2024

Plaintiff, JUSTIN SAPINI, by and through his attorneys, STOLZENBERGCORTELLI, LLP., as and for his Verified Bill of Particulars, in response to the demand of defendants, **ANTHONY F. FERRARA** and **METRO-NORTH COMMUTER RAILROAD**, respectfully submits the following:

1. Plaintiff's full name is Justin W. Sapini.
2. Plaintiff's date of birth is [REDACTED] Plaintiff was born in Hackensack, New Jersey. Plaintiff objects to demand for social security number pursuant to General Business Law § 399-ddd.
3. Plaintiff's residence address at the time of the within accident was 7 Valley Drive, Nanuet, New York 10954. Plaintiff's current residence address is 20510 Cypress Plaza Parkway, Apt. 3211, Cypress, Texas 77433.
4. The within accident occurred on April 23, 2023, at approximately 8:30 a.m.
5. The within accident occurred on Cedar Street at its intersection with Garden Street, New Rochelle, New York. Both vehicles were travelling southbound at the time of the occurrence.

6. That the serious and severe personal injuries sustained by plaintiff, JUSTIN SAPINI, were occasioned solely and wholly through and by reason of the carelessness, recklessness and negligence of the defendants in the ownership, operation, management, maintenance and control of the within motor vehicle; in operating same without due regard to the rights and safety of the plaintiff; in failing to properly steer, guide, manage and control said motor vehicle; in carelessly and negligently merging into plaintiff's lane of travel without ensuring it was safe to do so; in carelessly and negligently operating the said motor vehicle over and along a public highway at a high and/or excessive rate of speed and/or at a greater rate of speed than care and caution would permit under the circumstances and conditions then and there existing to the knowledge of the defendants; in failing to maintain a safe and adequate distance from plaintiff's vehicle; in failing to apply the brakes or slow down or stop in such a manner as would have prevented the occurrence; in failing to make adequate and timely observation of and response to conditions; in failing to keep a proper look-out when controlling said motor vehicle; in carelessly and negligently disregarding traffic control devices in place at the scene of the occurrence then and there in effect; in failing to see plaintiff's vehicle; in driving into plaintiff's vehicle; in driving into traffic without ensuring that it was safe to do so; in operating said motor vehicle in violation of the traffic rules, regulations, statutes and ordinances; in failing to avoid a collision with the plaintiff; and the defendant, ANTHONY F. FERRARA, was otherwise careless and negligent in failing and omitting to take proper and suitable precautions to avoid the said occurrence. Defendant, METRO-NORTH COMMUTER

RAILROAD, was further careless and reckless in the negligent entrustment of said motor vehicle to defendant, ANTHONY F. FERRARA.

7. At the time of the within accident, plaintiff, JUSTIN SAPINI, was operating a 2012 Volkswagen GLI bearing State of New York license plate number KYR1393 for the year 2023. Defendant, ANTHONY F. FERRARA, was operating a 2019 Chevrolet utility vehicle owned by Metro-North, bearing State of Pennsylvania license plate number ZMP3277 for the year 2023.
8. Defendant's passenger-side door came into contact with the Plaintiff's driver-side door and front fender.
9. As a result of the within occurrence, plaintiff, JUSTIN SAPINI, sustained the following injuries:

LEFT SHOULDER

TEAR OF THE POSTERIOR INFERIOR LABRUM AT THE 8 TO 9 O'CLOCK POSITION

TEAR OF THE POSTERIOR FIBERS OF THE INFRASPINATUS TENDON

THICKENING OF THE INFERIOR GLENOHUMERAL LIGAMENT WHICH CAN BE SEEN WITH ADHESIVE CAPSULITIS OR SCARRING FROM TEAR

SYNOVITIS

OPERATIVE PROCEDURE PERFORMED BY DAVID CAPIOLA, M.D. ON JULY 26, 2023, AT NEW HORIZON SURGICAL CENTER, LLC., AS FOLLOWS:

OPERATION: LEFT SHOULDER EXAMINATION UNDER ANESTHESIA.

1. LEFT SHOULDER ARTHROSCOPY POSTERIOR LABRAL REPAIR UTILIZING A 2.99MM BIOCOMPOSITE PUSHLOCK ANCHOR AND A CINCH STITCH
2. COMPLETE SYNOVECTOMY
3. LYSIS OF ADHESIONS
4. SUBACROMIAL DECOMPRESSION
5. EXTENSIVE DEBRIDEMENT OF THE BICEPS TENDON, PARTIAL ROTATOR CUFF TEAR, AND CARTILAGE DEFECT.

PRE-OPERATIVE DIAGNOSIS: LEFT SHOULDER POSTERIOR LABRAL TEAR AND SYNOVITIS

POST-OPERATIVE DIAGNOSIS:

1. **LEFT SHOULDER SIGNIFICANT POSTERIOR LABRAL TEAR**
2. **SYNOVITIS**
3. **ADHESIONS**
4. **IMPINGEMENT**
5. **BICEPS TENDON PARTIAL TEAR, PARTIAL ROTATOR CUFF TEAR, AND CARTILAGE DEFECT.**

PAIN

STIFFNESS

WEAKNESS

SPRAIN/STRAIN

NECESSITY OF USE OF A SLING

LEFT WRIST

SPRAIN/STRAIN

PAIN

STIFFNESS

WEAKNESS

Pain, tenderness, weakness, stiffness, swelling and discoloration with restriction of motion of the left upper extremity and with partial loss of use and function of the left upper extremity.

Increased pain and stiffness of the left upper extremity upon weight bearing, exertion, damp weather and change of weather.

Damage to the left upper extremity, including the joints, cartilage, ligaments, muscles, nerves, blood vessels, soft tissue and supporting structures of the left upper extremity.

RIGHT SHOULDER

ROTATOR CUFF TEAR, LABRAL TEAR, RIGHT SHOULDER

TEAR OF THE ANTERIOR HALF OF THE INFRASPINATUS TENDON

TEAR OF THE POSTERIOR INFERIOR LABRUM

***NECESSITY FOR RIGHT SHOULDER ARTHROSCOPIC
DEBRIDEMENT, LABRAL DEBRIDEMENT/REPAIR**

PAIN

STIFFNESS

WEAKNESS

SHOULDER SPRAIN/STRAIN

RIGHT HAND

TINGLING IN RIGHT HAND

Pain, tenderness, weakness, stiffness, swelling and discoloration with restriction of motion of the right upper extremity and with partial loss of use and function of the right upper extremity.

Increased pain and stiffness of the right upper extremity upon weight bearing, exertion, damp weather and change of weather.

Damage to the right upper extremity, including the joints, cartilage, ligaments, muscles, nerves, blood vessels, soft tissue and supporting structures of the right upper extremity.

HEAD

CEREBRAL CONCUSSION

POST-TRAUMATIC CEPHALGIA

POST-TRAUMATIC NEURONAL LOSS

POST-CONCUSSION SYNDROME

ABNORMAL DIFFUSION TENSOR IMAGING

ABNORMAL INCREASED BRAIN VOLUME

BLURRED VISION

MIGRAINE HEADACHES

DIZZINESS

PHOTOPHOBIA

LEFT KNEE

TEAR OF THE POSTERIOR HORN OF THE MEDIAL MENISCUS

PAIN

STIFFNESS

WEAKNESS

BUCKLING

MECHANICAL INSTABILITY

LEFT KNEE SPRAIN/STRAIN

Pain, tenderness, weakness, stiffness, swelling and discoloration with restriction of motion of the left lower extremity and with partial loss of use and function of the left lower extremity.

Increased pain and stiffness of the left lower extremity upon weight bearing, exertion, damp weather and change of weather.

Damage to the left lower extremity, including the joints, cartilage, ligaments, muscles, nerves, blood vessels, soft tissue and supporting structures of the left lower extremity.

RIGHT KNEE

TEAR OF THE POSTERIOR HORN OF THE MEDIAL MENISCUS

PREPATELLAR SOFT TISSUE EDEMA REFLECTING SOFT TISSUE
CONTUSION

PAIN

STIFFNESS

WEAKNESS

BUCKLING

MECHANICAL INSTABILITY

EDEMA

Pain, tenderness, weakness, stiffness, swelling and discoloration with restriction of motion of the right lower extremity and with partial loss of use and function of the right lower extremity.

Increased pain and stiffness of the right lower extremity upon weight bearing, exertion, damp weather and change of weather.

Damage to the right lower extremity, including the joints, cartilage, ligaments, muscles, nerves, blood vessels, soft tissue and supporting structures of the right lower extremity.

CERVICAL SPINE

CERVICAL SPINE MYOFASCIAL DERANGEMENT

STRAIGHTENING OF THE NORMAL LORDOSIS

C5-C6 DISC BULGE FLATTENING THE LEFT VENTRAL MARGIN OF THE CERVICAL CANAL

DECREASED/RESTRICTED RANGE OF MOTION OF NECK

NECK MUSCLE SPASMS

STIFFNESS IN NECK

NECK PAIN

Pain, tenderness, weakness, stiffness, restriction of motion with loss of use and function at the site of the forgoing injury.

Increased pain, discomfort and disability upon attempting daily activities including, walking stairways or attempts at running or walking rapidly, coughing, sneezing or other sudden motions of the spine.

Cold or damp weather as well as motions of the neck increase and aggravate the aforesaid symptoms and complaints relating to the cervical spine.

Damage to the spinal vertebrae including the muscles, ligaments, nerves, blood vessels, soft tissue, vertebral discs and supporting structures at the foregoing region.

Lying in bed, sitting and maintaining stationary bodily positions for extended periods of time increase and aggravate the aforesaid symptoms and complaints of the neck.

LUMBAR SPINE

LUMBAR SPINE MYOFASCIAL DERANGEMENT

L5-S1 DISC BULGE WITH LATERAL PREDOMINANCE ENCROACHES INTO AND NARROWS THE LATERAL RECESSES AND INFERIOR FORAMINA BILATERALLY

DECREASED/RESTRICTED RANGE OF MOTION OF BACK

LOWER BACK PAIN RADIATING TO THE LOWER EXTREMITIES

Pain, tenderness, weakness, stiffness, restriction of motion with loss of use and function at the site of the forgoing injury

Increased pain, discomfort and disability upon attempting daily activities including, walking stairways or attempts at running or walking rapidly, coughing, sneezing or other sudden motions of the spine

Cold or damp weather as well as motions of the lumbar spine increase and aggravate the aforesaid symptoms and complaints relating to the lumbar spine

Damage to the spinal vertebrae including the muscles, ligaments, nerves, blood vessels, soft tissue, vertebral discs and supporting structures at the foregoing region

Lying in bed, sitting and maintaining stationary bodily positions for extended periods of time increase and aggravate the aforesaid symptoms and complaints of the back

THORACIC SPINE

THORACIC SPINE MYOFASCIAL DERANGEMENT

Pain, tenderness, weakness, stiffness, restriction of motion with loss of use and function at the site of the forgoing injury

Increased pain, discomfort and disability upon attempting daily activities including, walking stairways or attempts at running or walking rapidly, coughing, sneezing or other sudden motions of the spine

Cold or damp weather as well as motions of the lumbar spine increase and aggravate the aforesaid symptoms and complaints relating to the thoracic spine

Damage to the spinal vertebrae including the muscles, ligaments, nerves, blood vessels, soft tissue, vertebral discs and supporting structures at the foregoing region

Lying in bed, sitting and maintaining stationary bodily positions for extended periods of time increase and aggravate the aforesaid symptoms and complaints of the back

Upon information and belief, the foregoing injuries including the symptoms, complaints, physical findings and disability herein alleged are permanent in nature.

10. Plaintiff sought treatment at the emergency room at Montefiore Nyack Hospital, located at 160 N. Midland Avenue, Nyack, New York 10960 on April 24, 2023.
11. As a result of the within accident, plaintiff, JUSTIN SAPINI, was confined as follows:
 - (a) Bed: The plaintiff had been confined to his bed for approximately one (1) week following the within accident on April 23, 2023 and one (1) week following his left shoulder surgery, with the exception of necessary health care visits.
 - (b) Home: The plaintiff has been essentially confined to his home from the date of accident of April 23, 2023, through present and continuing, with the exception of necessary health care visits.
12. Plaintiff has been totally disabled and incapacitated from his employment from the date of accident of April 23, 2023 through present, and continuing.
13. At the time of the within accident, plaintiff was working as a financial advisor for Northwestern Mutual, located at 875 Third Avenue, New York, New York 10022. At the time of the accident, plaintiff was paid by commission only. Plaintiff has not been able to return to work since the date of accident on April 23, 2023, through present.

An exact loss of earnings will be provided upon retention of an economic expert.
14. Not applicable, plaintiff was/is not a student.
15. Plaintiff claims special damages for medical care rendered by the providers set forth below. Information as to specific sums claims and dates of service are contained within

the respective providers' records. Authorizations for the release of same are included with plaintiff's discovery responses.

a-e) Medical Providers:

- I. Montefiore Nyack Hospital
160 N. Midland Avenue
Nyack, New York 10960
- II. Hudson Valley Radiology Associates/Mid Rockland Imaging
18 Squadron Boulevard
New City, New York 10956
- III. David Capiola, M.D.
451 Main Street
2nd Floor
New Rochelle, New York 10801
- IV. McCulloch Orthopaedic Surgical Services, PLLC.
3225 Westchester Avenue
Bronx, New York 10451
- V. Peter Kwan, M.D.
3611A East Tremont Avenue
Bronx, New York 10465
- VI. Interventional Physical Medicine & Rehabilitation, P.C.
451 Main Street
2nd Floor
New Rochelle, New York 10801
- VII. Kevin Haggerty, D.C./Advanced Rockland Chiropractic Offices, P.C.
265 N. Main Street
Suite A
Spring Valley, New York 10977
- VIII. SportsCare Physical Therapy of New York
410 Airport Executive Park
Nanuet, New York 10954
- IX. New Horizon Surgical Center, LLC.
680 Broadway
Suite 201
Paterson, New Jersey 07514

X. Lenox Hill Radiology
61 E. 77th Street
New York, New York 10075

16. Plaintiff claims that defendants violated Sections 1101, 1121, 1128, 1128(a), 1128(c), 1128(d), 1129(b), 1190, 1212, 1225(c)(d) and 1226 of the Vehicle and Traffic Laws of the State of New York, along with such other applicable Statutes, Ordinances, Rules and Regulations that the Court will take Judicial Notice of at the time of trial.
17. Not applicable, plaintiff is not asserting a claim for loss of services and/or loss of consortium.
18. Not applicable.
19. Upon information and belief, the foregoing injuries including the symptoms, complaints, physical findings and disability herein alleged are permanent in nature. Plaintiff sustained “serious injuries” as defined by Article 51 of the New York State Insurance Law in that plaintiff has suffered a permanent loss of use of a body organ, member, function or system; permanent consequential limitation of use of a body organ or member; significant limitation of use of a body function or system; or a medically determined injury or impairment of a non-permanent nature which prevents the injured person from performing substantially all of the material acts which constitute such persons usual and customarily daily activities for not less than ninety (90) days during the one hundred eighty (180) days immediately following the occurrence of the injury or impairment.
20. Plaintiff objects to this demand as beyond the scope of CPLR §3043.

Plaintiff reserves his right to amend and/or supplement these responses as additional information becomes available.

Dated: White Plains, New York
January 2, 2025

Yours, etc.

Howard B. Stolzenberg
HOWARD B. STOLZENBERG
STOLZENBERGCORTELLI, LLP.
Attorneys for Plaintiff
JUSTIN SAPINI
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White Plains, New York 10603
(914) 361-4888

TO: MILBER, MAKRIS, PLOUISAIDIS & SEIDEN, LLP
Attorneys for Defendants
ANTHONY F. FERRARA and
METRO-NORTH COMMUTER RAILROAD
1000 Woodbury Road
Suite 402
Woodbury, New York 11797
(516) 712-4000
File No.: 1805CS-28142M

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, HOWARD B. STOLZENBERG, an attorney admitted to practice in the Courts of the State of New York, say that:

I am a member of the firm of STOLZENBERGCORTELLI, LLP., the attorneys for plaintiff(s) in the within action;

I have read the annexed **BILL OF PARTICULARS** and the same is true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters, I believe them to be true.

The reason I make this verification instead of plaintiff is that plaintiff resides outside of the county in which my office is located.

The sources of my information and the grounds for my belief are based upon correspondence and reports of investigation in the files of my firm. I affirm that the foregoing statements are true under the penalties of perjury.

Dated: White Plains, New York
January 2, 2025

Howard B. Stolzenberg
HOWARD B. STOLZENBERG

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD,

Defendants.
-----X

VERIFIED BILL OF PARTICULARS

STOLZENBERG CORTELLI, LLP.

Attorneys for Plaintiff

JUSTIN SAPINI

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White Plains, New York 10603

(914) 361-4888

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

DATED: White Plains, New York
January 2, 2025

Howard B. Stolzenberg
HOWARD B. STOLZENBERG